

Ashish Kumar v. Purvanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 5 January 2021 · WRIT - C No. 23679 of 2020 · **Writ dismissed for alternative remedy of Section 127 appeal.**

HEADNOTE

A writ to quash a Collector's recovery citation issued after confirmation of a final assessment, and to compel decision on objections and restoration of supply, is not maintainable where the consumer does not dispute that an appeal lies under Section 127; the petition is dismissed for alternative remedy.

FACTUAL SUMMARY

After inspection of his premises, Purvanchal Vidyut Vitran Nigam Ltd. made a provisional assessment against Ashish Kumar on 1 October 2019. He filed no reply. The assessment was confirmed as final on 16 December 2019. The Collector, Mau, then issued a recovery citation dated 29 June 2020. The petitioner approached the High Court to quash that citation, compel a decision on his objection to the final assessment, and restore electricity supply, alleging that a representation against the assessment notice remained pending.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

alternative-remedy-final-assessment-appeal

HOLDING

Where a provisional assessment has been confirmed as final and the consumer does not dispute that an appeal lies against that assessment, a writ seeking to quash a Collector's recovery citation, to compel decision on objections, and to restore supply is dismissed for alternative remedy under Section 127. ¶ 2

FLAG Court referred to 'Section 127 of the Electricity Supply Code'; s.127 is of the Electricity Act, 2003.

PRINCIPLE TAGS

alternate-remedy-section-127-appeal-bars-writ Writ against recovery citation, pending objection, and disconnection after a confirmed final assessment dismissed because a Section 127 appeal was available and not disputed. ¶ 2

final-assessment-order-relegates-assessee-to-section-127-appeal Confirmation of the 16.12.2019 final assessment, with no reply to the 1.10.2019 provisional assessment, was treated as attracting the Section 127 appeal and not a writ. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 16.12.2019 FINAL ASSESSMENT, THE 29.06.2020 RECOVERY CITATION, RESTORATION OF SUPPLY, AND THE PENDING REPRESENTATION

left open by dismissal for Section 127 appeal ¶ 2